

IN THE HIGH COURT OF JUDICATURE AT BOMBAY

Mukesh Sharma vs Union Of India & Ors. ... on 21 August, 2022

[2022] 4 SCR 460, (2023) 5 SCC 568

Bench: Krishna Murari, CJI and P.S. Narasimha, J.

JUDGMENT

Krishna Murari, CJI

1. The petitioner, Mukesh Sharma, invokes the extraordinary jurisdiction of this Court under Article 32 of the Constitution of India challenging state action concerning digital privacy and surveillance disclosures, contending violation of Article 21 privacy and Article 19(1)(a) expression.

2. Mr./Ms. Andhyarujina, learned Senior Counsel for the petitioner, argued that the impugned measure fails the proportionality standard ? legality, legitimate aim, necessity, and balancing ? recognized in Maneka Gandhi and subsequent authorities.

3. Reliance was placed on (1978) 1 SCC 248 in the case of Maneka Gandhi v. Union of India, and on (2016) 7 SCC 353 in the case of Modern Dental College v. State of M.P..

4. The learned Solicitor General defended the action as falling within reasonable restrictions under Article 19(2) and Article 21 framework, citing national security and administrative exigency.

5. Upon evaluation, this Court finds that while the State has legitimate interests, the absence of procedural safeguards renders the impugned action disproportionate under Articles 14 and 21 of the Constitution of India.

6. The writ petition under Article 32 of the Constitution is accordingly disposed of with directions to constitute an independent oversight committee.

P.S. Narasimha, J. - I agree.